

House File 644

S-3037

1 Amend House File 644, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 232.2, subsection 12, paragraph c, Code
5 2025, is amended to read as follows:

6 c. (1) All rights and duties of a custodian shall be
7 subject to any residual rights and duties remaining in a parent
8 or guardian.

9 (2) Notwithstanding subparagraph (1), the department may
10 consent to emergency medical care and routine medical care for
11 a child that will allow the child to experience childhood and
12 participate in activities in a manner similar to the child's
13 peers. "Routine medical care" includes but is not limited to
14 all of the following:

15 (a) Preventative care, also known as wellness care, not
16 including the administration of a vaccination.

17 (b) Nonemergency medical care including but not limited
18 to a physical examination, a diagnostic laboratory test, or a
19 medical visit for a minor illness.

20 (c) Use of necessary medication, including but not limited
21 to antibiotics.

22 (3) Notwithstanding subparagraph (1), the department
23 may consent to a child's participation in an individualized
24 education program.

25 Sec. 2. Section 232.2, subsection 12, Code 2025, is amended
26 by adding the following new paragraph:

27 NEW PARAGRAPH. d. If a court order entered under this
28 chapter transfers legal custody of a child to the department,
29 the department shall have the authority to delegate the
30 department's rights and duties as custodian of the child to a
31 licensee under chapter 237.

32 Sec. 3. Section 237.10, subsection 1, Code 2025, is amended
33 by adding the following new paragraph:

34 NEW PARAGRAPH. d. (1) The department shall notify an
35 individual licensee, and the parents or guardians of a child,

1 if the department delegates the department's right to consent
2 to emergency medical care and routine medical care on behalf of
3 the child under section 232.2, paragraph "c", to the individual
4 licensee.

5 (2) The department shall notify the department of
6 education, an individual licensee, and the parents or guardians
7 of a child if the department delegates the department's right
8 to consent to participation in an individualized education
9 program on behalf of the child under section 232.2, paragraph
10 "c", to the individual licensee.>

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